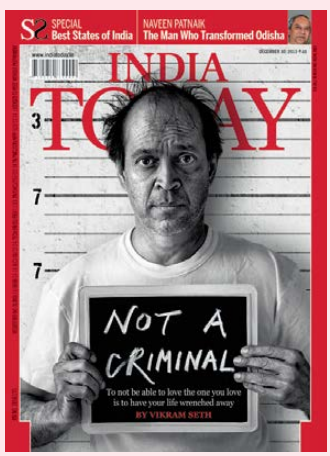
FROM THE ARCHIVES
Sep. 24, 2018

Cover Story **Free at Last**

Much of the urban emphasis is now towards everyday practicalities: Being able to open a joint bank account, get insurance, acquire a home loan, sign as next of kin in a medical emergency, pay rent without a landlord threatening to throw them out.

–Damayanti Datta & Chinki Sinha



Dec. 30, 2013

Cover Story **Stigmatised**

For those a generation ahead, being gay has meant being sensible about it. Karani's partner, Joseph, a Catholic from Kerala, knew that he would not be accepted by his family, and set out to achieve emotional and financial independence. "When my priest suggested I watch straight porn to 'reorient' myself, I knew I had to make a choice. I eventually left my faith."

–Gayatri Jayaraman

"I am what I am, so take me as I am. No one can escape who they are...no one can escape from their individualism. Society is now better for individualism"

— EX-CJI DEEPAK MISHRA
One of the five judges who ruled on decriminalising homosexuality (2018)

DID YOU KNOW?

In 2009, the Delhi High court had decriminalised homosexuality among consenting adults. But in 2012, the SC overturned the decision, later recommending that Parliament address the matter

PINK SPRING

» **LGBTQ individuals finally free to be open about their sexual preferences without fear of legal repercussions**

» **Earlier, many gay people used to find it difficult to access healthcare, education, police services, which has become easier**

» **The judgment led to the creation of new concepts such as right to privacy, constitutional morality and transformative constitutionalism**

» **The freedom from being labelled as criminals helped many to come out, increasing self-acceptance and self-confidence**

The historic 2018 Supreme Court judgment ruled that Section 377 of the Indian Penal Code violated fundamental rights, including the right to freedom of expression, the right to life, and the right to be free from discrimination based on sexual orientation and gender identity. The road to decriminalisation has been a long one. In 1994, the AIDS Bhedbhav Virodhi Andolan (ABVA) filed a legal petition for decriminalising homosexuality in the Delhi High Court, which was rejected. Then, in 2001, the Naz Foundation filed another legal petition in the Delhi High Court, which too was rejected. In 2009, the Delhi High court decriminalised homosexuality among consenting adults, but that decision was overturned in 2012 by the apex court.

It finally took multiple petitions filed in the Supreme Court by five people in 2016 for Section 377 to be overturned. Some experts say at the time of the 2018 decision, there was pressure on Asian countries to make themselves more attractive for global talent. Hong Kong, in fact, had just allowed visas for spouses of gay expatriate workers. Whatever the reason, the decision was historic and led to incredible improvements in the lives of gay people. However, there still remains a lot of social sensitisation that needs to be done for LGBTQ+ rights; the case for the legalisation of same-sex marriages in India is also yet to be resolved. ■